

2019 C L D 946

[Lahore]

Before Jawad Hassan, J

MAQBOOL AHMAD and others---Petitioners

Versus

ENVIRONMENT PROTECTION AGENCY and others---Respondents

Writ Petition No. 5119 of 2019, decided on 8th February, 2019.

(a) Pakistan Environmental Protection Act (XXXIV of 1997)---

---S. 22---Punjab Mining Concession Rules, 2002, R. 234---Appeal to Environmental Tribunal--
-Petitioners were aggrieved of letter issued by Environment Protection Department and work
order issued by department of Mines and Minerals---Plea of department was that alternate
remedy of appeal was available in view of S. 22, Pakistan Environmental Protection Act, 1997
and R. 234 of Punjab Mining Concession Rules, 2002---Validity---Specific remedy of appeal
against the impugned letter and work order was available to petitioners which they had not
availed rather filed the constitutional petition before the High Court---Reasons advanced by
petitioners for not filing the appeals were not persuasive as nobody could be allowed to bypass
any provision of law and the procedure laid down for a particular purpose---Constitutional
petition was disposed of with direction to approach the relevant forum---Order accordingly.

Dr. Imran Khattak and another v. Ms. Sofia Waqar Khattak, PSO to Chief Justice and
another 2014 SCMR 122 rel.

(b) Constitution of Pakistan---

---Art. 199--- Constitutional petition--- Maintainability--- Alternate remedy---Maintainability---

Where alternate remedy was available constitutional petition was not maintainable.

Muhammad Abbasi v. SHO Bhara Kahu and 7 others PLD 2010 SC 969 rel.

Muhammad Nadeem Mehar for Petitioners.

Saeed Anjum, Kanwal Tariq Butt for Respondents.

Ms. Nabila Khalid, A.D. Legal EPA, M. Asraf Inspector Choniyan, EPA, Muhammad Hafeez, Director General, Mines and Mineral, Umar Farooq, Deputy Director, and M. Rashad Bhatti, Law Officer.

JUDGMENT

JAWAD HASSAN, J.---Through the instant petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioners have assailed the letter dated 20.11.2018 issued by the Assistant Director IEA (Environmental Protection Department) and work order dated 23.11.2018 issued by the Department of Mines and Minerals, Punjab.

2. During the course of arguments, learned Law Officer vehemently objected to the maintainability of the petition and laid much stress on the point that against the impugned letter and work order the Petitioners have alternate remedy of Appeals before the competent authority in view of section 22 of the Pakistan Environment Protection Act, 1997 (the "Act") and 234 of the Punjab Mining Concession Rules, 2002 (the "Rules"). When this situation was confronted to the learned counsel for the Petitioners, he could not submit any tangible reply rather reiterated the contents of the petition and seeks interference by this Court.

3. I have heard the arguments advanced by both the learned counsel for the parties and have perused the record.

4. The record reflects that the Petitioners have challenged the letter dated 20.11.2018 issued by the Assistant Director IEA and work order dated 23.11.2018 issued by the Department of Mines and Minerals, Punjab. Specific remedy of Appeals against the impugned letter and work order under section 22 of the Act and 234 of the Rules is available to the Petitioners which they have not availed rather filed this petition. Section 22 of the Act as well as 234 of the Rules specifically deals with the issue which, for the sake of brevity, are reproduced below and are as follows:

"22. Appeals to the Environmental Tribunal.---(1) Any person aggrieved by any order or direction of the [Provincial Agency] under any provision of this Act and rules or regulations made thereunder may prefer an appeal with the Environmental Tribunal within thirty days of the date of communication of the impugned order or direction to such person.

(2) An appeal to the Environmental Tribunal shall be in such form, contain such particulars and be accompanied by such fees as may be prescribed."

234. Appeal.- (1) If a person is aggrieved by an order of the Licensing Authority passed under these rules; he may within thirty days of the communication of the impugned order and on payment of such fee as may be prescribed by the Government, prefer an appeal to the Director General, Mines and Minerals, Punjab.

(2) The Director General, Mines and Minerals, Punjab may, pending the decision of the appeal, grant a stay order:---

Provided that an application for stay order in respect of Government dues shall be accompanied by a pay order of one fourth of the disputed amount in favor of the Director General, Mines and Minerals, Punjab in his official capacity, failing which the application shall stand dismissed.

(3) If the appeal in which a stay order had been granted is finally rejected and the Director General Mines and Minerals, Punjab is of the view that the appeal was preferred on frivolous grounds of the stay order was obtained by deceit or fraud on the part of the appellant, it

may, while deciding the appeal, impose a penalty on the appellant upto 10 % of the disputed amount as the case may be.

(4) The amount deposited under sub-rule (2) shall first be adjusted towards the penalty imposed under sub-rule (3) and the remaining amount, if any may be adjusted towards the satisfaction of the Government dues, and the balance, if any shall be refunded to the appellant."

5. From the bare reading of the above-said sections it is very much clear that against the impugned letter and work order, the Petitioners have the right to Appeals before the competent authority under section 22 of the Act as well as 234 of the Rules respectively. In this view of the matter, the Petitioners have the alternate remedy of Appeals. It is well established law that when alternate remedy is available Constitutional petition is not maintainable. Reliance in this regard is placed on the case reported as Muhammad Abbasi v. SHO Bhara Kahu and 7 others (PLD 2010 SC 969) wherein the august Supreme Court of Pakistan has inter alia held as under:-

"The invocation of constitutional jurisdiction where alternate remedy is provided which is convenient and beneficial cannot be made."

6. Moreover, the reasons advanced by learned counsel for the Petitioners for not filing the Appeals are not persuasive as nobody can be allowed to bypass any provision of law and the procedure laid down for a particular purpose. Reliance can also be placed on the case titled Dr. Imran Khattak and another v. Ms. Sofia Wagar Khattak, PSO to Chief Justice and another (2014 SCMR 122) in which it has been held by the Hon'ble Supreme Court of Pakistan as follows:

"Remedy provided by Ss. 103, 103-A & 103-AA of Representation of the People Act, 1976, and Art. 218(3) of the Constitution were not only adequate but efficacious as well by all means. The High Court in such a situation could not encroach upon domain of Election Commission, nor could it arrogate to itself a power or jurisdiction which was not conferred on it by the Constitution or Representation of the People Act, 1976. The Executing Court did not fail at any stage or refused to perform its legal and constitutional duty which necessitated the High Court exercise of its constitutional jurisdiction. The High Court had overstepped the parameters laid down by the Constitution and law which was a case of exercise of jurisdiction not conferred on it by law and the Constitution. The Judge of High Court or Supreme Court was bound to abide by and adhere to law and the Constitution. The Supreme Court set aside judgment passed by High Court and observed that aggrieved persons could approach the fora provided by the Constitution and Representation of the People Act, 1976, for redressal of their grievance."

7. From the above, it can safely be held that this Court is bound to exercise its extraordinary Constitutional jurisdiction where no other adequate remedy is provided by law but in the present case alternate remedy by filing an Appeals to the competent authority is available to the Petitioners, therefore, this petition is not maintainable. However, in the interest of justice, as the Petitioners remained keep in touch with the matter in dispute somehow or the other, therefore, the limitation period, if comes in the way to file Appeals, shall be deemed to be condoned.

8. In view of what has been discussed above, this Court is not inclined to exercise its Constitutional jurisdiction in presence of alternate remedy to the Petitioners under the law rather observed that it would be more appropriate to issue direction to the Respondents to decide the Appeals of the Petitioner within one month positively, if filed before the competent forum. With this direction the instant petition stands disposed of.

SA/M-31/L

Order accordingly.